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HIGH COURT OF CHHATTISGARH AT BILASPUR

CRA No. 1321 of 2021

Sukhuram Mandavi S/o Aasharam Mandavi Aged About 45 Years R/o Sadakpara Pusavad, Police Station Doundi District Balod Chhattisgarh

... Appellant

versus

State Of Chhattisgarh Through Station House Officer, Police Station Doundi District Balod Chhattisgarh

... Respondent

For Appellant	:	Mr. C.R.Sahu, Advocate
For Respondent	:	Mr.S.S.Baghel, Government Advocate

Hon'ble Shri Ramesh Sinha, Chief Justice
Hon'ble Shri Ravindra Kumar Agrawal, Judge

Judgment on Board

***Per* Ramesh Sinha, Chief Justice**

17/08/2026

1. This criminal appeal under Section 374(2) of the CrPC is directed against the impugned judgment of conviction and order of sentence dated 21.09.2021 passed by the First Additional Sessions Judge, Balod, District Balod in Sessions Case No.1/2020, by which the appellant herein has been convicted for

offence under Section 302 of the IPC and sentenced to undergo imprisonment for life and fine of Rs.100/-, in default of payment of fine, to further undergo RI for thirty days.

2. Case of the prosecution, in brief, is that on 05.10.2019, at about 6:00 p.m., Vishnuram Mandavi (PW-6), a resident of Village Pusawad, went to Kotwar Jaderam Gada (PW-1) and informed him that Sukhuram Mandavi had assaulted his wife, Smt. Phoolkunwar, with the leg of a cot in their house, as a result of which she had died. Upon receiving this information, Uderam Gada (PW-1) and other villagers proceeded to the place of occurrence and found Smt. Phoolkunwar lying dead in her room. She had sustained a serious injury to her face, and bloodstains were visible on the floor. On the same night, Kotwar Uderam Gada (PW-1) went to Police Station Daundi and reported the incident. Accordingly, an information regarding an unnatural and accidental death was recorded vide Ex.P-10, and the First Information Report was registered vide Ex.P-1. Thereafter, the police of Police Station Daundi reached the place of occurrence on the same night and inspected the scene. On the morning of 06.10.2019, the Investigating Officer, Sub-Inspector Vikas Kumar Deshmukh (PW-7), reached the place of occurrence and, in the presence of witnesses, seized plain soil, blood-stained soil, pieces of broken bangles, etc. An inquest report regarding the deceased was prepared, and a spot map depicting the condition of the place of occurrence and its surroundings was prepared vide Ex.P-2. The

seizure memo relating to the articles connected with the offence was prepared vide Ex.P-5, and the Panchayatnama/inquest proceedings were recorded vide Ex.P-11. The dead body of the deceased was sent for postmortem to the Community Health Centre, Dondi, where Dr.N.K.Thakur (PW-10) conducted postmortem over the body of the deceased vide Ex.P-22 and found following injuries:-

> “1. There was a contusion and pressure mark on the right side of the neck, measuring 11 × 5 cm, situated near and below the right ear.
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> 2. Along with a contusion injury, there were pressure marks on the left side of the neck and the upper part of the chest, measuring 3 × 3 cm and 6 × 4 cm, respectively.
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> 3. Along with contusion injuries and pressure marks, there were scratch marks resembling nail scratches on the left side of the neck and the upper part of the chest, each measuring ½ × ½ cm.
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> 4. Along with a contusion injury, pressure marks and scratch marks were present on the front-left side of the neck and the upper part of the chest, measuring 7 × 5 cm.
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> 5. There was a lacerated wound on the left side of the face, extending up to the right side of the jaw, measuring 2 × 1 cm, and extending up to the depth of the bone.
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> 6. There was a lacerated wound below the left ear, measuring 4 × 1 × ¼ cm.

7. There was a lacerated wound on the left side of the face, measuring ½ × ½ cm.

8. There was a scratch mark on the left side of the lower lip, measuring 1 × 1 cm.

9. There were scratch marks on the left arm, measuring 5 × 3 cm and 5 × 4 cm, respectively."

The doctor has opined that mode of death is asphyxia combine with hemmorrhagic shock, cause of death is strangulation combine with excessive bleeding of the traumatic injury and nature of death is homicidal. During the course of investigation, accused Sukhuram Mandavi was interrogated in the presence of witnesses, and his memorandum statement was recorded vide Ex.P-8. At his instance, and in the presence of the same witnesses, one wooden leg of a cot, allegedly used by him in the commission of the offence, was seized, and a seizure memo was prepared vide Ex.P-7. The statements of the informant and certain other witnesses were recorded. The accused was arrested. Seized articles were sent to FSL for chemical examination and as per FSL report (Ex.P19), human blood was found on let of cot Article C seized from the appellant, sari Article D and blouse Article E seized from the deceased. During the course of investigation, statements of the remaining witnesses were also recorded under Section 161 of the Code of Criminal Procedure. The seized articles were sent for chemical examination.

3. Upon completion of the investigation, it was found that the accused had murdered his wife. Accordingly, a charge-sheet under Section 302 of the Indian Penal Code was filed against him before the Court of the Judicial Magistrate First Class, Dallirajhara, who in turn, committed the case to the Court of Sessions, Balod, from where the First Additional Sessions Judge, Balod received the case on transfer for trial.

4. Charge under Section 302 of the Indian Penal Code was framed against the accused. The charge was read over and explained to him, whereupon he denied having committed the offence and claimed to be tried. When the accused was examined under Section 313 of the Code of Criminal Procedure, he stated that he was innocent and had been falsely implicated in the case. The accused did not examine any witness in his defence.

6. On behalf of the prosecution, the statements of the following witnesses were recorded: Kotwar Uderam Gada (PW-1), Preetram Nureti (PW-2), Shankarlal Netam (PW-3), Biharilal Kange (PW-4), Smt. Baran Bai (PW-5), Vishnuram (PW-6), Premsingh Mandavi (PW-7), Patwari Lavansingh Yamle (PW-8), Sub-Inspector Vikas Kumar Deshmukh (PW-9), Dr. N.K. Thakur (PW-10), and Constable Bindesh Kumar Manjhi (PW-11).

5. The trial Court upon appreciation of oral and documentary evidence available on record, by its judgment dated 21.09.2021, convicted the appellant for offence under Section 302 of the IPC

and sentenced as mentioned in opening paragraph of this judgment, against which, this criminal appeal has been preferred by the appellant herein.

6. Learned counsel for the appellant submits that the judgment of conviction passed by the learned trial Court is contrary to the facts, evidence, and law on record and is therefore liable to be set aside. It is contended that the prosecution has failed to prove the guilt of the appellant beyond reasonable doubt and that the conviction is primarily based on circumstantial evidence, but the chain of circumstances is incomplete and does not conclusively connect the appellant with the alleged offence. It is further submitted that there are material contradictions, omissions, and inconsistencies in the statements of the prosecution witnesses. In particular, the evidence of Preetram Nureti (PW-2), Shankarlal Netam (PW-3), Biharilal Kange (PW-4) and Prem Singh Mandavi (PW-7) does not establish that they had witnessed the appellant assaulting the deceased. There is admittedly no eyewitness to the occurrence. The prosecution witnesses have also not fully supported the prosecution case, and their evidence is insufficient to sustain a conviction for murder.

7. Learned counsel further submits that the appellant and the deceased were husband and wife and had cordial relations. The incident, at the most, arose out of a sudden quarrel and exchange of hot words, during which the appellant allegedly assaulted the deceased with a stick, resulting in injuries. There was no prior

motive, mens rea, intention to cause death, or enmity between the appellant and the deceased. Therefore, the ingredients necessary to constitute an offence under Section 302 of the Indian Penal Code are not established. It is also argued that the memorandum statement of the appellant and the alleged seizure made pursuant thereto do not provide sufficient incriminating evidence connecting him with the commission of the offence. The conviction cannot be sustained merely on the basis of suspicion, assumption, or conjectures. Lastly, learned counsel submits that the prosecution has failed to establish an unbroken and complete chain of circumstances pointing exclusively towards the guilt of the appellant. The appellant is therefore entitled to the benefit of reasonable doubt, and the impugned judgment of conviction and sentence deserves to be set aside and the appellant be acquitted of the charges.

8. Per contra, learned Government Advocate appearing for the respondent/State, while opposing the submissions made by learned counsel for the appellant, submits that the judgment of conviction passed by the learned trial Court is well-reasoned and based upon proper appreciation of the oral, medical, and documentary evidence available on record. The prosecution has proved the death of Phoolkunwar to be homicidal and has established the involvement of the appellant beyond reasonable doubt. It is further submitted that the medical evidence, including the injuries found on the body of the deceased and the

postmortem report, corroborates the prosecution case. The presence of contusion, pressure and scratch marks, as well as lacerated wounds, clearly indicates that the deceased was subjected to assault. The evidence regarding the seizure of the wooden leg of the cot at the instance of the appellant further corroborates the prosecution case. Learned State Counsel submits that the alleged contradictions and omissions pointed out by the appellant are minor in nature and do not affect the core of the prosecution case. Merely because there is no direct eyewitness to the occurrence, the prosecution case cannot be discarded when the circumstances proved on record form a complete chain pointing towards the guilt of the appellant.

9. It is further contended that the appellant and the deceased were residing together as husband and wife and the occurrence took place inside their house. The appellant was therefore in a position to explain the circumstances in which his wife sustained the fatal injuries. His mere denial under Section 313 of the Code of Criminal Procedure does not rebut the incriminating circumstances established by the prosecution. Learned State Counsel further submits that the absence of a specific motive is not fatal to the prosecution case where the other circumstances and evidence conclusively establish the guilt of the accused. The plea of a sudden quarrel or absence of intention is unsupported by reliable evidence and cannot, by itself, displace the finding of guilt under Section 302 of the Indian Penal Code. Accordingly, learned

State Counsel submits that the prosecution has proved the case beyond reasonable doubt, the chain of circumstances is complete, and there is no perversity or illegality in the impugned judgment. The appeal therefore deserves to be dismissed and the conviction and sentence awarded by the learned trial Court be affirmed.

10. We have heard learned counsel appearing for the parties, considered their rival submissions made herein-above and also went through the records with utmost circumspection.

11. The question for consideration is whether the appellant is the author of the crime, which the trial Court has answered in affirmative relying upon the circumstantial evidence available on record. The trial Court has convicted the appellant with the aid of Section 106 of the Indian Evidence Act holding that it is house murder, which the appellant was required to offer explanation in his statement under Section 313 of the CrPC, which he has failed to offer and consequently, finding other circumstance established, proceeded to convict him for offence under Section 302 of the IPC.

12. Section 106 of the Indian Evidence Act, 1872, states as under: -

> "**106. Burden of proving fact especially within knowledge.**—When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him."

13. The law regarding under Section 106 of the Indian Evidence Act, 1872 is well settled. The unnatural death of Phoolkunwar took place in the house of the appellant.

14. As per the requirement of Section 106 of the Indian Evidence Act, the accused / appellant was required to give plausible and convincing explanation about the circumstances, in which, the deceased was found dead in his/her house. Where an offence like murder is committed inside the house, the initial burden to establish the case would undoubtedly be upon the prosecution, but the nature and amount of evidence to be led by it to establish the charge cannot be of the same degree as is required in other cases. The burden would be of a comparatively lighter character.

15. In view of Section 106 of the Indian Evidence Act, 1872, there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how crime was committed. The inmates of the house cannot keep away by simply keeping quite and offering no explanation on the supposed premise that the burden to establish its case lies entirely upon the prosecution and there is no duty at all on the accused to offer any explanation.

16. In the matter of **Trimukh Maroti Kirkan v. State of Maharashtra** reported in **(2006) 10 SCC 681** the Supreme Court whilst applying provisions of Section 106 of the Indian Evidence Act, observed in para 14 reads as under:

> “14. If an offence takes place inside the privacy of a house and in such circumstances where the assailants

have all the opportunity to plan and commit the offence at the time and in circumstances of their choice, it will be extremely difficult for the prosecution to lead evidence to establish the guilt of the accused if the strict principle of circumstantial evidence, as noticed above, is insisted upon by the Courts. A Judge does not preside over a criminal trial merely to see that no innocent man is punished. A Judge also presides to see that a guilty man does not escape. Both are public duties. The law does not enjoin a duty on the prosecution to lead evidence of such character which is almost impossible to be led or at any rate extremely difficult to be led. The duty on the prosecution is to lead such evidence which it is capable of leading, having regard to the facts and circumstances of the case. Here it is necessary to keep in mind Section 106 of the Evidence Act which says that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (b) appended to this section throws some light on the content and scope of this provision and it reads:

> (b) A is charged with traveling on a railway without ticket. The burden of proving that he had a ticket is on him."

17. On the interpretation of Section 106 of the Indian Evidence Act, 1872 in the matter of **Shambhu Nath Mehra v. State of Ajmer** reported in **AIR 1956 SC 404** in paragraph 9 it was observed by the Supreme Court thus:

> "9. This lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, it is designed to meet certain

exceptional cases in which it would be impossible, or at any rate disproportionately difficult, for the prosecution to establish facts which are "especially" within the knowledge of the accused and which he could prove without difficulty or inconvenience. The word "especially" stresses that. It means facts that are pre-eminently or exceptionally within his knowledge. If the section were to be interpreted otherwise, it would lead to the very startling conclusion that in a murder case the burden lies on the accused to prove that he did not commit the murder because who could know better than he whether he did or did not."

18. In the matter of **State of West Bengal v. Mir Mohammad Omar and others** reported in **(2000) 8 SCC 382**, the Supreme Court has observed in paras 31 to 33 as under:

> “31. The prestine rule that the burden of proof is on the prosecution to prove the guilt of the accused should not be taken as a fossilised doctrine as though it admits no process of intelligent reasoning. The doctrine of presumption is not alien to the above rule nor would it impair the temper of the rule. On the other hand, if the traditional rule relating to burden of proof of the prosecution is allowed to be wrapped in pedantic coverage the offenders in serious offences would be the major beneficiaries, and the society would be the casualty.
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> 32. In this case, when the prosecution succeeded in establishing the afore narrated circumstances, the Court has to presume the existence of certain facts. Presumption is a course recognized by the law for the court to rely on in conditions such as this.

> 33. Presumption of fact is an inference as to the existence of one fact from the existence of some other facts, unless the truth of such inference is disproved. Presumption of fact is a rule in law of evidence that a fact otherwise doubtful may be inferred from certain other proved facts. When inferring the existence of a fact from other set of proved facts, the Court exercises a process of reasoning and reach a logical conclusion as the most probable position. The above principle has gained legislative recognition in India when Section 114 is incorporated in the Evidence Act. It empowers the Court to presume the existence of any fact which it thinks likely to have happened. In that process Court shall have regard to the common course of natural events, human conduct etc. in relation to the facts of the case."

19. The decision of the Supreme Court in **Shambhu Nath Mehra** (supra) was followed with approval in the matter of **Nagendra Sah v. State of Bihar** reported in **2021 10 SCC 725** in which it has been held by their Lordships of the Supreme Court as under:

> "22. Thus, Section 106 of the Evidence Act will apply to those cases where the prosecution has succeeded in establishing the facts from which a reasonable inference can be drawn regarding the existence of certain other facts which are within the special knowledge of the accused. When the accused fails to offer proper explanation about the existence of said other facts, the court can always draw an appropriate inference.
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> 23. When a case is resting on circumstantial evidence, if the accused fails to offer a reasonable explanation in discharge of burden placed on him by virtue of Section 106 of the Evidence Act, such a failure may provide an additional link to the chain of circumstances. In a case governed by circumstantial evidence, if the chain of circumstances which is required to be established by the

> prosecution is not established, the failure of the accused to discharge the burden under Section 106 of the Evidence Act is not relevant at all. When the chain is not complete, falsity of the defence is no ground to convict the accused."

20. It is to be remembered here that homicidal nature of death need not always be proved through direct evidence. It has to be inferred from the circumstances and the nature of injuries noticed on the dead body. The instant case is about the death of a wife committed by the husband within four walls of the house. When the assailant is the husband, it is difficult indeed to get direct evidence on the nature of injuries. It is thus concluded that the deceased died homicidal nature of death. Considering the nature of injuries, which the deceased were found, we are of the considered opinion that death of the deceased was homicidal in nature. It is held accordingly.

21. In the present case, the deceased was found dead in her house and at that time, only the appellant and the deceased were present in the house and as per the provision of Section 106 of the Evidence Act, the burden to prove that the appellant was not present in the house at the time of incident and he was present elsewhere is on the appellant, which he admittedly failed to prove in his statement under Section 313 of the CrPC.

22. Taking into consideration that the burden of proving a plea specially set up by the appellant which may absolve him from criminal liability, certainly lies upon him and he has not offered any

plausible explanation, further taking into consideration that the appellant was required to explain as to how the deceased suffered such injuries, as the dead body of the deceased was found lying inside the house of the appellant, which he has admittedly not explained in his statement under Section 313 of the CrPC and the material collected by the prosecution, we are of the considered opinion that the above chain of circumstances is complete and leads only to one conclusion that it was the accused/appellant who caused death of the deceased. The view taken by the learned trial Court that the appellant is the author of the crime is a pure finding of fact based on evidence available on record. We hereby affirm that finding.

23. In the result, this Court comes to the conclusion that the prosecution has succeeded in proving its case beyond all reasonable doubts against the appellant. The conviction and sentence as awarded by the trial court to the appellant is hereby upheld. The present criminal appeal lacks merit and is accordingly **dismissed**.

24. It is stated at the Bar that the appellant is in jail. He shall serve out the sentence as ordered by the trial Court.

25. The Registry is directed to transmit the certified copy of this judgment along with the record to the trial Court concerned for necessary information and compliance and also send a copy of this judgment to the concerned Superintendent of Jail where the

appellant is undergoing his jail term, to serve the same on the appellant informing him that he is at liberty to assail the present judgment passed by this Court by preferring an appeal before the Hon'ble Supreme Court with the assistance of the High Court Legal Services Committee or the Supreme Court Legal Services Committee.

Sd/- Sd/-

(**Ravindra Kumar Agrawal**) (**Ramesh Sinha**)
Judge Chief Justice

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